

Ours "Across the country, more than half of the U.S. attorney seats remain without a prosecutor chosen by Obama. Republican U.S. Sen. John Cornyn draws fire in a recently published opinion piece pointing out that the four chief federal prosecutor positions in Texas have yet to be filled by lawyers of Democratic President Barack Obama's choosing. Two Democrats, Dallas lawyer Thomas Melsheimer and Craig Smith, a state district judge, said in an op-ed article in Monday's Austin American-Statesman that Cornyn's insistence on holding sway over the U.S. attorney appointments in Texas has kept them from happening. "Obama should be allowed to select a competent nominee of his choice without Cornyn's blessing on the front end," they write. Other Senate Republicans are similarly thwarting the president, they suggest. "Across the country," they write, "more than half of the U.S. attorney seats remain without a prosecutor chosen by Obama." Really? We reached Melsheimer, who said he based the less-than-half claim on information provided by the interim U.S. attorney for the Northern District of Texas, James T. Jacks. We couldn't reach Jacks, but Melissa Schwartz, spokeswoman for the U.S. Department of Justice, told us Obama appointees have been confirmed as U.S. attorneys for 51 of the nation's 93 districts. A U.S. Senate Committee on the Judiciary web page lists the U.S. attorneys nominated by Obama and confirmed by the Senate. Fifty-one of 93 equals 55 percent, not "less than half." According to the Senate committee list, the last time that Obama appointees occupied less than half the U.S. attorney slots was early May. His 47th U.S. attorney nominee was confirmed with others May 5; three more nominees were confirmed May 25, nearly two weeks before the op-ed was published. Still, we wondered if there's a legitimate beef with Cornyn, who serves on the judiciary committee, and if it matters when the leadership posts are filled by civil-service lawyers instead of presidential appointees. Some perspective: Traditionally, the U.S. attorney posts turn over with each change in president. Though nationally, a handful of the top prosecutors appointed by President George W. Bush remain in place, the Bush appointees in Texas are gone, replaced by career Department of Justice lawyers considered temporary holders of the plum posts pending the arrival of Obama's choices. Cornyn said Wednesday he's falsely accused of blocking

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